

25PSCV03427 25PSCV03427

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-31

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Case Number: 25PSCV03427 Hearing Date: August 31, 2026 Dept: O

Tentative Ruling

DEFENDANT

GENERAL MOTORS LLC'S MOTION FOR COMPLIANCE PURSUANT TO C.C.P. § 871.26; AND

REQUEST

FOR SANCTIONS is MOOT re compelling deposition since that occurred on 8/5 but GRANTED as to sanctions because Plaintiff did not meet and confer until after the filing of the motion.

Background

This is a
lemon law case.

On September
23, 2025, Plaintiff David Egge filed suit against Defendant General Motors,
LLC.

On March 4,
2026, this court sustained Defendant's demurrer with a motion to strike.

On April 16,
2026, Defendant filed its answer.

On June 8,
2026, the instant motion was filed.

On August 3,
2026, an opposition was filed.

On August 24,
2026, a reply was filed.

Discussion

Defendant
moves this Court for an order for
compliance requiring Plaintiff to appear and comply with the initial deposition
of the Plaintiff under Code of Civil Procedure section 871.26, subdivision
(c)(1).

After
a review of the papers, that request is moot as Plaintiff's deposition was
taken on August 5, 2026.

That
said, in reply, Defendant maintains that sanctions of \$1,500 are
warranted/required because Plaintiff repeatedly failed to comply with section
871.26. (Reply p. 1.) The following timeline, gathered from papers and
declarations, readily resolves the issue in favor of Defendant:

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The statutory
deadline to conduct the deposition of Plaintiff was May 15, 2026.

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As part of the responsive pleading e-mail, GM attached a
Notice of Deposition, for Plaintiff to appear for deposition on March 25, 2026.

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Plaintiff timely served a written objection on March 19,
2026, expressly stating
that Plaintiff would meet and confer to reschedule the deposition to a mutually
convenient date. (Smith Decl. ¶
5.) (According to Defendant, Plaintiff's firm has canceled over 510
Plaintiff's depositions since January 2026.)

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Plaintiff did not meet and
confer to reschedule a deposition.

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On May 6, 2026,
counsel for GM sent a follow-up e-mail to Plaintiff's counsel requesting dates
for Plaintiff's availability for deposition.

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As of the filing
of the motion on 6/8, no response was received. (Motion p. 6:4-5; Stark Decl., ¶8.)

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One month later, on July 8, Plaintiff requested to
schedule the deposition between August 3, 2026 and August 5, 2026. (Stark
Decl., ¶17.)

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On July 8, 2026, GM replied and accepted the date of
August 5, 2026. On July 16, 2026, GM served notice.

Accordingly,
while Plaintiff maintains that they "kept
th[e] commitment" of meeting and conferring, not so. Instead, the timeline demonstrates is that
since objecting to the March 25, 2026, deposition, Plaintiff's counsel did not
make any attempts to reschedule until faced with
GM's motion for compliance. Consequently, absent "good cause," the court must
award monetary sanctions in the amount of \$1,500.00 against Plaintiff's counsel
Strategic Legal Practices, APC which is to be paid within 15 business days
pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

Conclusion

Based

on the foregoing, the motion is moot re: compelling the deposition and granted
re: sanctions in the amount of \$1,500.